

**Court No. - 32**

**Case :-** WRIT - C No. - 26992 of 2018

**Petitioner :-** Tariq

**Respondent :-** Pashimanchal Vidyut Vitran Nigam Ltd.

**Counsel for Petitioner :-** Satyam Narayan

**Counsel for Respondent :-** Ajay Kumar

**Hon'ble Shashi Kant Gupta,J.**

**Hon'ble Ajit Kumar,J.**

This writ petition, inter alia, has been filed for the following reliefs;

**"A. Issue a writ in the nature of mandamus directing the respondent to reconnect the electricity supply of the house of the petitioner.**

From perusal of the record, it appears that an inspection of the premises of the petitioner was made by the authorities concerned and the petitioner was allegedly found committing the theft of electricity. Thereafter, order of provisional assessment has been passed and notice has been issued to the petitioner to file his objection within 15 days.

It appears that that the supply of the electricity on the premises in question has also been disconnected. Perusal of the notice dated 1.8.2018 indicates that 15 days' time has been given but no date has been fixed. According to the provisions contained under Clause 6.8 (b) Electricity Supply Code, 2005, it is incumbent upon authorities concerned to fix a date and time of hearing but in the present matter, neither any date nor time has been fixed.

In view of the above, without expressing any opinion on the merits of the case, this writ petition is being **disposed of** with a direction to the petitioner to appear on 27.8.2018 at 11 A.M. before the respondent-Executive Engineer along with his objection and adduce any evidence, if any, in support of his contention. The respondent-Executive Engineer, thereafter, shall pass the final order by a speaking order after considering the objections of the petitioner as well as the contention raised by the petitioner in accordance with law.

It is open for the petitioner, if so advised, to take all legal pleas as permissible in law.

**Order Date :-** 9.8.2018/vinay